

25NNCV07072 25NNCV07072

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Case Number: 25NNCV07072 Hearing Date: July 17, 2026 Dept: B

Hon. Victor Avila, Dept B

MOTION FOR SANCTIONS

Hearing Date: 07/17/26

CASE NO./NAME: 25NNCV07072 Quinn v. Valley

Post-Acute and Rehab LLC, et al.

Moving Party: Plaintiff

Harvey Olen Quinn

Responding Party: Unopposed

Notice: Sufficient

Ruling: GRANT

NOTICE

The

Court is not requesting oral argument on this matter. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to appear and argue. The tentative ruling will become the ruling of the court if no argument is received.

Notice

may be given either by email at or by telephone at (818) 260-8422.

BACKGROUND

This is an elder abuse case. On December 20, 2025, Plaintiff Harvey Olen Quinn ("Plaintiff") served a Notice of Taking Deposition of the Person Most Knowledgeable of Defendant Valley Post Acute and Rehab, LLC ("Defendant"). Plaintiff filed a motion to compel Defendant's PMK deposition on January 13, 2026.

On March 27, 2026, this court granted Plaintiff's motion, ordering Defendant to produce its PMK for deposition and to produce the requested documents within 20 days of the order.

Plaintiff now moves for an order imposing issue, evidence, and monetary sanctions against Defendant and its counsel of record, jointly and severally, in the amount of \$5,000.00 for Defendant's violation of the March 27, 2026, Court Order compelling Defendant to produce its PMK for deposition and to produce the requested documents by April 16, 2026.

Defendant has not filed an opposition.

LEGAL

STANDARD

Under Code of Civil Procedure section 2031.300, "[i]f a party ... then fails to obey the order compelling a response, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction under Chapter 7 (commencing with Section 2023.010). In lieu of or in addition to that sanction, the court may impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)." (Code Civ. Proc., § 2030.290, subd. (c).)

The "court, after notice to any affected party, person, or attorney, and after an opportunity for hearing, may impose" monetary, issue, evidence, or terminating sanctions "against anyone engaging in conduct that is a misuse of the discovery process[.]" (Code Civ. Proc., §§ 2023.030; 2023.030, subds. (a)-(d).) Failing to respond or submit to an authorized method of

discovery and disobeying a court order to provide discovery are misuses of the discovery process.” (Code Civ. Proc., § 2023.010, subds. (d) and (g).) 22

“The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse.” 22 The trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery and, in choosing a sanction, should ‘attempt 22 to tailor the sanction to the harm caused by the withheld discovery.’” 22 (Doppes 22 v. Bentley Motors, Inc. 22 (2009) 174 Cal.App.4th 967, 992 [citations omitted].) 22

DISCUSSION

Plaintiff

seeks issue, evidentiary, and/or monetary sanctions against Defendant for their failure to comply with the Court’s March 27, 2026, Court Order compelling Defendant to produce its PMK for deposition and to produce the requested documents. (Mot., p. 2.) In the alternative, Plaintiff moves the court to order Defendant to produce all documents in its care responsive to the request for production contained within the original Notice of Deposition and without objection. (Mot., p. 4.)

Evidentiary

Sanctions

Plaintiff

moves the Court to order the defense be precluded from presenting any evidence as to the following issues:

(a) That Defendant had sufficient staff to meet the needs of its residents during the residency of Harvey Quinn;

(b) That Defendant did not know their staff who provided nursing services were unfit to perform their job duties;

(c) Defendant’s managing agents did not know of the unfitness of their staff who provided nursing services to Plaintiff; and

(d) Such actions by Defendant were not the proximate cause of Harvey Quinn suffering from an avoidable, open coccyx pressure sore while a resident of the facility.

(Mot., p. 4.)

When

a party violates a discovery order, a trial court may prohibit the violating party from introducing evidence at trial that contradicts the opponent's claims or supports the violating party's defenses. (*Juarez v. Boy Scouts of America* (2000) 81 Cal.App.4th 377, 387.)

Evidentiary

sanctions may be imposed only after a motion to compel is made and granted and the party to be sanctioned has failed to comply with that order. (*Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1214.) However, violation of a discovery order is not a prerequisite to evidentiary sanctions when the offending party has engaged in a pattern of willful discovery abuse that causes the unavailability of evidence. (*Id.* at p. 1215.)

In *Young*

v. Rosenthal (1989) 212 Cal.App.3d 96, a party was precluded from testifying after refusing to cooperate with the taking of his deposition. As a result of having failed to comply with the trial court's discovery order only once, the trial court granted a motion for issue and evidence sanctions ordering that certain facts be deemed established according to Plaintiff's claims and that severe evidentiary limitations be placed on the defendant at trial. (*Young v. Rosenthal* (1989) 212 Cal.App.3d 96, 104-108.)

Here,

Plaintiff argues that Defendant has not complied with the March 27, 2026, Minute Order Compelling Defendant to produce its PMK for deposition and to all produce requested documents within twenty days of the order. (See 3/27/26 Minute Order.) The deposition and document production were therefore to occur by April 16, 2026. On May 1, 2026, the deposition of Defendant's PMK occurred, however Defendant did not provide a response to Topic of Inquiry Number 3 and failed to produce all responsive documents. (Garcia Decl., ¶ 9.) On May 26, 2026, a further deposition occurred, however Defendant again failed to produce all responsive documents. (Garcia Decl., ¶ 11.) Defendant has thus failed to comply with the Court's order.

The

Court finds that Defendant has engaged in conduct that is a misuse of discovery by disobeying the Court's March 27, 2026, Court Order.

Defendant did not serve objections to the notice of taking deposition and failed to appear at the noticed deposition. (See 3/27/26 Minute Order.) Over four months after the motion to compel deposition was granted, Defendant still has not produced the requested documents. (Garcia Decl., ¶ 12.)

Defendant has shown willful and serious abuse of the discovery process and has not opposed this motion or other discovery-based motions filed by Plaintiff in this action.

Moreover,

this misuse of discovery is not an isolated incident. The Court previously granted and imposed monetary sanctions against Defendant after Plaintiff filed a Motion to Compel Further Responses to several discovery requests. (See 2/6/26 Minute Order.) An evidentiary sanction is necessary to compel compliance because Defendant has shown monetary sanctions alone are insufficient to ensure Defendant complies with this Court's orders.

Therefore,

Defendant is precluded from introducing evidence as to the following:

(a) That Defendant had sufficient staff to meet the needs of its residents during the residency of Harvey Quinn;

(b) That Defendant did not know their staff who provided nursing services were unfit to perform their job duties;

(c) Defendant's managing agents did not know of the unfitness of their staff who provided nursing services to Plaintiff; and

(d) Such actions by Defendant were not the proximate cause of Harvey Quinn suffering from an avoidable, open coccyx pressure sore while a resident of the facility.

Issue

Sanctions

Plaintiff

moves the Court for an order determining that Plaintiff has proven, by clear

and convincing evidence, the following as to Defendant:

(a) Defendant failed to have sufficient staff to meet the needs of its residents during the residence of Harvey Quinn on an ongoing basis in violation of 22 Code of Regulations section 72329;

(b) Defendant knew their staff were unfit to perform their job duties;

(c) That in doing so, Defendant employed their staff with the knowing disregard for the rights and safety of Harvey Quinn; and

(d) Such an action by Defendant was the proximate cause of Harvey Quinn suffering from an avoidable open coccyx pressure sore.

In light of this Court's ruling on Plaintiff's request for evidentiary sanctions, Plaintiff's request in the alternative for issue sanctions is denied.

Monetary
Sanctions

In addition to or in lieu of any other sanction, the court may order the disobedient party or counsel responsible or both to pay the reasonable expenses, including attorney fees, incurred as a result of the failure to obey (including fees on the sanctions motion). (Code Civ. Proc. § 2023.030, subd. (a).)

Plaintiff also seeks monetary sanctions be imposed against Defendant and its counsel in the amount of \$5,000.00. Plaintiff's counsel, Mr. Garcia, declares that a paralegal spent 1.5 hours drafting the instant motion at an hourly rate of \$150.00, and that Mr. Garcia himself has spent 2 hours researching and finalizing the motion and anticipates another 4 hours considering the opposition, preparing a reply, and attending the hearing at an hourly billing rate of \$1,000.00. (Garcia Decl., ¶ 15.) Further, Mr. Garcia declares spending 2 hours preparing for and taking the second deposition and anticipates spending 2 hours taking the third deposition. (Garcia Decl., ¶ 15.) Mr. Garcia declares spending in excess of \$750.00 in court reporter fees for the second deposition and anticipates the same for a third deposition. (Garcia Decl., ¶ 15.) Finally, Mr. Garcia declares incurring over

\$750.00 in fees as to a court reporter at the hearing on this motion and a \$60.00 filing fee. (Garcia Decl., ¶ 15.)
Nevertheless, Plaintiff limits the reimbursement request to \$5,000.00.
(Garcia Decl., ¶ 15.)

Here, the Court
will exercise its discretion and reduce the monetary sanctions as follows: 1
hour for drafting at a paralegal rate of \$150 per hour for a total of \$150,
plus .5 hours reviewing the motion at an attorney rate of \$1,000 per hour for a
total of \$500, plus 2 hours spent preparing for and taking the second
deposition at an attorney rate of \$1,000 for a total of \$2,000, plus the \$60 filing
fee for the instant motion for a total of \$60, and a report fee of \$750 for
each court-reporter fee actually incurred for a total of \$1,500. This results
in a total of \$4,210 in monetary sanctions against Defendant and their counsel.

However, in
light of certain arguments presented by Defense counsel concerning his health-related
reasons for the delays in responding, the Court finds that a further reduction
in the sanctions amount is warranted. Accordingly, the Court reduces the sanctions
to \$2,500.

CONCLUSION AND ORDER

Plaintiff's
motion for evidentiary sanctions is GRANTED.

Plaintiff's
motion for issue sanctions is DENIED.

Plaintiff's
motion for monetary sanctions is GRANTED in the amount of \$2,500.00.

MOVING PARTY
shall
provide notice of this order.